DOCUMENT ID: LEGAL-016
CATEGORY: NGT Southern Zone Order
ISSUE DATE: 2022-03-24
ISSUING AUTHORITY: National Green Tribunal, Southern Zone Bench, Chennai
DESIGNATED OFFICER: District Collector Chengalpattu, Commissioner Tambaram City Municipal Corporation & TNPCB Distr
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OFFICIAL TITLE:
NGT Southern Zone Original Application No. 125 of 2020 (SZ) Prevention of Sewage Inflow and Solid Waste Dumping in Sembakkam, Medavakkam & Perumbakkam Lakes

SUMMARY & APPLICABILITY TO ERIWATCH (TAMIL NADU IRRIGATION TANKS):
This statutory / government / judicial record governs the protection, survey, maintenance, desilting, flood regulation, pollution control, and eviction of encroachments in traditional village irrigation tanks (eris) across Kancheepuram and Chengalpattu districts in Tamil Nadu.

LEGAL-016 - OPERATIVE CLAUSES & STATUTORY DIRECTIVES (PAGE 2)
Title: NGT Southern Zone Original Application No. 125 of 2020 (SZ) Prevention of
Addressed / Competent Officer: District Collector Chengalpattu, Commissioner Tambaram City Municipal Corporation & TNPCB

CLAUSE 1: Para 22 & Direction (a) (Zero Untreated Sewage & Solid Waste in Tanks)
The Tribunal directed the Chengalpattu District Collector, Water Resources Department, and local bodies to immediately plug all unauthorised storm-water drains discharging untreated domestic sewage or septage into Sembakkam, Medavakkam, and Perumbakkam irrigation tanks.

CLAUSE 2: Direction (c) (Environmental Compensation under Polluter Pays Principle)
The Tamil Nadu Pollution Control Board (TNPCB) is mandated to levy Environmental Compensation under Section 5 of the Environment (Protection) Act and the Water (Prevention and Control of Pollution) Act, 1974 against any local body or commercial establishment dumping construction debris (C&D waste) or garbage on tank bunds and foreshores.